Notification Waiver Determination

MLPL HoldCo – shares in Marinus Link Pty Ltd

Acquisition	Marinus Link Pty Ltd (**MLPL**), an operating company which is jointly owned by the Commonwealth of Australia, the State of Tasmania, and the State of Victoria (the **Shareholders**), applied for a notification waiver in respect of the proposed acquisition by a newly established holding company, Marinus Link Holding Company Pty Ltd (**MLPL HoldCo**), of 100% of the shares in MLPL in exchange for the issuing of shares in MLPL HoldCo to each Shareholder in proportion to their current shareholdings in MLPL, as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	26 June 2026

Parties to the Acquisition	MLPL is an operating company which is developing a new undersea and underground electricity interconnector between Tasmania and Victoria (**Marinus Link**). Once operational, Marinus Link will enable the transmission of electricity between Tasmania and Victoria, providing affordable and renewable energy for customers in the National Electricity Market. Pursuant to the Acquisition, the Shareholders will undertake a restructure whereby a newly established holding company, MLPL HoldCo, will be interposed between MLPL and the Shareholders. The shareholdings in MLPL HoldCo will reflect the Shareholders' current proportional shareholdings in MLPL.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the Acquisition involves the transfer of assets between commonly controlled entities b. there is no horizontal consolidation or removal of a competitor as a result of the Acquisition.

	The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. The ACCC has also considered the potential application of section 51ABD of the Act. The application states that on the facts of this matter, including the particular entities and structures involved, it is not clear that the Acquisition falls within that provision. Having regard to the particular circumstances, including the consequences of non-notification in reliance on the exemption if it is found not to apply, the ACCC considers it appropriate to make a determination on the basis that the acquisition provisions in the Act apply to the Acquisition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act